PETITION - CLEARING A FIRST DUI

IN THE ..... COURT
(Circuit clerk of the county of conviction - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

FIRST-OFFENSE DUI EXPUNGEMENT (MISS. CODE ANN. Sec. 63-11-30)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under Miss. Code Ann. Sec. 63-11-30(13); Miss. Code Ann. Sec. 63-11-30(2)(c); Miss. Code Ann. Sec. 63-11-30(2)(d); Miss. Att'y Gen. Op. (Booker, 29 Sept. 2020) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Section 63-11-30 carries its own first-offence DUI expungement provision, entirely separate from the ordinary misdemeanour route, and a DUI must never be routed through Sec. 99-19-71(1). Every condition must be met: at least five years after successful completion of all terms and conditions of the sentence; the person did not hold a commercial driver's licence or a commercial learner's permit at the time of the offence; the person did not refuse the blood or breath test; blood alcohol concentration below .16 where test results are available; no other DUI conviction and no pending DUI; the person has not previously had a DUI nonadjudication or a DUI expungement; and the person must justify the expungement to the court. Relief is discretionary. Venue is the CIRCUIT COURT of the county of conviction: the Attorney General has opined that a municipal court judge is not authorized to expunge a DUI conviction, although municipal and justice courts may handle expungement of nonadjudicated first-offence DUI charges in certain circumstances. That is the most likely way a Mississippi DUI petition gets filed in the wrong court. A third, fourth or subsequent DUI under Sec. 63-11-30(2)(c) and (2)(d) is separately excluded from felony expungement under Sec. 99-19-71(2)(a)(iv). The complete current text was obtained on this pass from enrolled SB 2095 (Laws 2022 ch. 303), the last enacted amendment: the expungement provision is subsection (13), captioned 'Expunction'. It is frequently cited in practice as Sec. 63-11-30(14); per the 2022 enrolled act (13) is Expunction and (14) is Nonadjudication. Subsection (13)(b) additionally makes a person eligible for only ONE expunction under the subsection and directs the Department of Public Safety to maintain a permanent confidential registry of all such expunctions solely to determine eligibility for expunction, for nonadjudication, or as a first offender. Subsection (13)(c) requires the court to state in writing the justification for which the expunction was granted and to forward the order to the Department of Public Safety within five days.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it, except where the petition

already states the fact - your name, your date of birth and your contact details are printed in this petition and are not asked for again. Fill each item below from the record itself.

[C1 - other name on the case] Any OTHER name this case is under - a former name, a maiden name, an alias, or a misspelling in the court record. Your full legal name is printed in the caption above and in the signature block below, so only this second limb is left for you. Write NONE if there is no other name.
.....
.....

[C2 - county of residence] Which Mississippi county and city do you live in?
.....
.....

[C3 - court level] Which court handled the case - justice court, county court, circuit court, or municipal court? Mississippi has four trial court levels that all handle expungements and people routinely misidentify which one heard their case.
.....
.....

[C4 - court county] Which county was that court in? For a municipal court, which city?
.....
.....

[C5 - cause number] What is the cause or case number?
.....
.....

[C6 - charge name] What were you charged with, and under which Mississippi Code section if you know it?
.....
.....

[C7 - offense date] On what date did the offence happen?
.....
.....

[C8 - arrest date] On what date were you arrested or cited?
.....
.....

[C9 - arresting agency] Which agency arrested or cited you, and what is their case number if you have it?
.....
.....

[C10 - prosecuting authority] Which prosecuting authority handled the case - the district attorney for the circuit district, or a county or municipal prosecuting attorney?
.....
.....

[C11 - dui conviction date] On what date were you convicted of the DUI?
.....
.....

[C12 - dui conviction court] Which court entered the DUI conviction? Note that the expungement petition itself goes to the circuit court of that county, not back to the convicting court.
.....
.....

[C13 - sentence completion date] On what date did you successfully complete all terms and conditions of the sentence?
.....
.....

[C14 - commercial licence] Did you hold a commercial driver's licence or a commercial learner's permit at the time of the offence?
.....
.....

[C15 - refused test] Did you refuse the blood or breath test?
.....
.....

[C16 - bac result] If a test was taken, what was the blood alcohol concentration result?
.....
.....

[C17 - other dui] Do you have any other DUI conviction, or any DUI charge pending now?
.....
.....

[C18 - prior dui relief] Have you ever had a DUI nonadjudication or a DUI expungement before?
.....
.....

[C19 - justification] In your own words, why should the court grant this expungement? The statute requires you to justify it, and this is your statement.
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under Miss. Code Ann. Sec. 63-11-30(13); Miss. Code Ann. Sec. 63-11-30(2)(c); Miss. Code Ann. Sec. 63-11-30(2)(d); Miss. Att'y Gen. Op. (Booker, 29 Sept. 2020).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

PROPOSED ORDER - CLEARING A FIRST DUI

IN THE ..... COURT
(Circuit clerk of the county of conviction)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under Miss. Code Ann. Sec. 63-11-30(13); Miss. Code Ann. Sec. 63-11-30(2)(c); Miss. Code Ann. Sec. 63-11-30(2)(d); Miss. Att'y Gen. Op. (Booker, 29 Sept. 2020). The Court, having considered the petition and anything filed with it,

ORDERS that .....

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED .....

.....
(The court signs here if, and only if, it grants the petition.)

CERTIFICATE OF SERVICE - CLEARING A FIRST DUI

IN THE ..... COURT
(Circuit clerk of the county of conviction)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that on the date I write beside my signing line below, and not before, I delivered a copy of the petition and of the proposed order filed with it to the person or office named here:

Name and office of the person or office to whom the papers were delivered:
.....

Address at which the papers were delivered:
.....

How the papers were delivered - by hand, by mail, or by the electronic method the court accepts:
.....

DATE ..... SIGNATURE OF PETITIONER .....

(DO NOT SIGN OR DATE THIS PAGE UNTIL THE PAPERS HAVE ACTUALLY BEEN DELIVERED. A certificate signed before delivery states something that has not happened.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

RECORDS CHECKLIST - CLEARING A FIRST DUI

This records checklist is for Maria-Alejandra O'Shaughnessy-Whitfield.

RECORDS CHECKLIST

Gather these records before filing. Ask the circuit clerk which records must be attached to the petition and whether the clerk requires certified copies. This checklist does not replace any record and is not proof that a missing record exists.

- Certified copy of the DUI judgment of conviction. Ask the clerk of the court that entered the DUI conviction for a certified copy of the judgment.

- Blood or breath test result, or documentation that no test was refused. Obtain the test result. The statute conditions relief on not having refused the test and, where results are available, on a concentration below .16, so this document is central rather than optional.

- Certified driving record. Obtain your certified driving record. It establishes whether any other DUI appears and whether you held a commercial licence.

- Account balance sheet from the clerk showing a zero balance. Ask the clerk for an account balance sheet showing that all fines, costs and restitution are paid in full. Mississippi courts commonly require a zero balance in practice even where the subsection does not say so, and on the felony track payment of all criminal fines and costs of court is a statutory condition.

Keep the originals. File or serve copies only as the circuit clerk directs. Every DUI packet requires attorney review before filing and a post-generation handoff.

FILING INSTRUCTIONS - CLEARING A FIRST DUI

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

First-Offense DUI Expungement (Miss. Code Ann. Sec. 63-11-30).

Section 63-11-30 carries its own first-offence DUI expungement provision, entirely separate from the ordinary misdemeanour route, and a DUI must never be routed through Sec. 99-19-71(1). Every condition must be met: at least five years after successful completion of all terms and conditions of the sentence; the person did not hold a commercial driver's licence or a commercial learner's permit at the time of the offence; the person did not refuse the blood or breath test; blood alcohol concentration below .16 where test results are available; no other DUI conviction and no pending DUI; the person has not previously had a DUI nonadjudication or a DUI expungement; and the person must justify the expungement to the court. Relief is discretionary. Venue is the CIRCUIT COURT of the county of conviction: the Attorney General has opined that a municipal court judge is not authorized to expunge a DUI conviction, although municipal and justice courts may handle expungement of nonadjudicated first-offence DUI charges in certain circumstances. That is the most likely way a Mississippi DUI petition gets filed in the wrong court. A third, fourth or subsequent DUI under Sec. 63-11-30(2)(c) and (2)(d) is separately excluded from felony expungement under Sec. 99-19-71(2)(a)(iv). The complete current text was obtained on this pass from enrolled SB 2095 (Laws 2022 ch. 303), the last enacted amendment: the expungement provision is subsection (13), captioned 'Expunction'. It is frequently cited in practice as Sec. 63-11-30(14); per the 2022 enrolled act (13) is Expunction and (14) is Nonadjudication. Subsection (13)(b) additionally makes a person eligible for only ONE expunction under the subsection and directs the Department of Public Safety to maintain a permanent confidential registry of all such expunctions solely to determine eligibility for expunction, for nonadjudication, or as a first offender. Subsection (13)(c) requires the court to state in writing the justification for which the expunction was granted and to forward the order to the Department of Public Safety within five days.

WHERE IT GOES

Circuit clerk of the county of conviction
File in the circuit court of the county of conviction even where the DUI conviction itself was entered in a municipal or justice court.
Venue: The circuit court of the county of conviction. This is a venue trap: a municipal court judge is not authorized to expunge a DUI conviction, per the Attorney General.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: No amount is published here. Section 99-19-72's fee reaches petitions under Sec. 99-19-71 and does not reach Sec. 63-11-30 by its terms. The participant confirms with the circuit clerk.
Fee waiver as recorded: Not established. The participant asks the clerk.

WHO MUST BE SERVED

Service as recorded: United States mail or hand delivery, evidenced by the certificate of service. Notice as recorded: The district attorney receives a copy. Relief is discretionary and the person must justify the expungement to the court.

WHAT THE RECORD SAYS YOU MUST KNOW

- Mississippi has no statewide expungement form and Sec. 99-19-71 prescribes none. The four archived petition and order PDFs are Fourth Circuit Court District models covering Leflore, Sunflower and Washington counties only: every county field reads '(Washington, Sunflower, or Leflore)', the certificate of service hardcodes the Fourth District DA at Greenville, the signature blocks are dated 2020, and the orders carry an APPROVED AS TO FORM block. They are drafting references only. Court, county and prosecuting authority are participant-data fields and are never hardcoded.
- Build the district-variable fields - court, court level, county, cause number, and the prosecuting authority's name and address - as participant data, never hardcoded. Never default to the Greenville address, the three Fourth District counties, or the year 2020.
- Tell the participant that Mississippi has no statewide expungement form, that practice varies by county and by circuit district, that some districts expect the district attorney to approve the order as to form before the judge will sign, and that they should call the clerk of the court where the case was heard before filing to ask whether that court has its own preferred form or additional requirements.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Every DUI. All DUI packets carry mandatory attorney review before filing and a post-generation handoff.
- Any doubt about which court to file in, given that the petition goes to circuit court rather than the convicting court.
- Any refusal of the test, any test result at or above .16, or any missing test documentation.
- Any commercial driver's licence or commercial learner's permit at the time of the offence.
- Any other DUI conviction, pending DUI, or prior DUI nonadjudication or expungement.
- The participant is not a US citizen.
- Obtaining the district attorney's approval as to form is the practical gate on the entire Mississippi product and it is a negotiation, not a filing. LegalEase prepares the certificate of service, the cover letter and the notice calendar; it does not seek, obtain or negotiate the prosecutor's approval, and a declining or silent prosecutor is an attorney handoff.
- All DUI packets carry mandatory attorney-review and post-generation handoff instructions, but packet identity remains known.

THE PAGES IN THIS SET

- ms-dui-primary-filing-1: the composed petition, on this route's own statutory ground (Clearing a first DUI)
- ms-dui-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Clearing a first DUI)
- ms-dui-certificate-of-service-3: the page on which the participant records that the papers were actually delivered, signed only after delivery (Clearing a first DUI)
- ms-dui-attachment-4: the route-specific records checklist identifying the records to gather and confirm with the circuit clerk (Clearing a first DUI)
- ms-dui-instructions-5: what this set is, where it goes, what it costs, who must be served, and when to stop (Clearing a first DUI)